

THIS CONTRACT FOR FUNDING SUPPORT FROM THE UNICEF INNOVATION FUND (this “Contract”) is made between:

THE UNITED NATIONS CHILDREN'S FUND (“UNICEF”), an international inter-governmental organisation established by the General Assembly of the United Nations by resolution No. 57(1) of 11 December 1946 as a subsidiary organ of the United Nations, having its headquarters at UNICEF House, Three United Nations Plaza, New York, New York, 10017, U.S.A. and having its office in **[NAME OF COUNTRY]** at **[ADDRESS OF UNICEF FIELD OFFICE]**; and

[COMPLETE COMPANY NAME] (“TechCo”, together with UNICEF the “Parties” and each one of them a “Party”), a corporation organised and existing under the laws of **[COUNTRY]** and having its principal offices at **[ADDRESS]**.

WHEREAS:

A. UNICEF is an integral part of the United Nations, and works with governments, civil society organizations and other partners worldwide to advance children’s rights to survival, protection, development and participation, guided by the Convention on the Rights of the Child.

B. UNICEF has established a fund (the “UNICEF Innovation Fund”) to help foster the development of new technologies that can be used to improve the delivery of assistance to children through UNICEF’s programmes of cooperation and to improve the lives of children generally, by providing financial support to commercial enterprises and academic institutions in UNICEF’s programme countries that are designing, prototyping, piloting and marketing such technologies with, in UNICEF’s assessment, a reasonable prospect of success.

C. TechCo is developing a solution that it believes will improve the delivery of assistance to children by **[REF TO PROJECT OBJECTIVES]** and has designed and costed a project (the “Project”) for developing that application to the point where it can be commercially exploited.

D. TechCo has sought, and UNICEF has agreed to provide, financial support (the “Funding”) from the UNICEF Innovation Fund for the Project as described in the project design statement and budget (the “Project Design Statement and Budget”), in accordance with the terms and conditions set forth in this Contract and within the framework of its activities in **[NAME OF COUNTRY]**.

NOW THEREFORE, in consideration of the mutual promises and covenants contained in this Contract, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. Contract Documents

1.1 This Contract comprises: (a) this document; and (b) the UNICEF General Terms and Conditions of Contract (Services), a copy of which is attached to this document as **Annex A** (as amended below); and (c) the Project Design Statement and Budget, a copy of which is attached to this document as **Annex B**. The documents comprising this Contract are complementary of one another, but if there is any ambiguity or inconsistency between those documents, then (i) this

document will take precedence over the UNICEF General Terms and Conditions of Contract in Annex A and the other annexes (if any), and (ii) Annex A will take precedence over Annex B.

1.2 The UNICEF General Terms and Conditions of Contract (Service) are amended with regard to this Agreement as follows:

(a) The first sentence of Article 2.1 (*Provision of Services and Deliverables*) is replaced by paragraph 5.1 of Article 5 of this Contract;

(b) Paragraphs (b), (c) and (e) of Article 2.8 (*Non-conforming Services and Consequences of Delay*) are deleted.

(c) Paragraphs (d) and (e) of Article 2.10 (*Contractor's Personnel and Sub-contractors*) are replaced by paragraph 5.11 of Article 5 of this Contract and the first sentence of Paragraph 2.11 is deleted;

(d) Article 3 (*Fee; Invoicing; Tax Exemption; Payment Terms*) is replaced by Articles 4 and 5.5 of this Contract;

(e) Articles 4.4 and 4.5 (*Indemnification*) and 4.6 (*Insurance*) are replaced by Article 7 of this Contract;

(f) Article 5.1 (*Intellectual Property and Other Proprietary Rights*) is replaced by Article 8 of this Contract;

(g) Articles 6.5 and 6.6 (*Termination*) are replaced by Articles 9.2 and 9.3 of this Contract;

(h) Article 11.7 (*Other Provisions*) is replaced by Article 11 of this Contract;

(i) For the purposes of this Contract, references in UNICEF General Terms and Conditions of Contract (Service) to the "Contractor" are references to TechCo, references to "Services" are references to the Project activities and references to the "scope of work" are references to the Project Design Statement and Budget.

1.3 This Contract (including any documents incorporated by reference in this Contract) is the entire agreement between the Parties with regard to subject matter of this Contract. It supersedes all prior representations, agreements, contracts and proposals, whether written or oral, by and between the Parties on this subject. No promises, understandings, obligations, supplemental undertakings, licenses, terms-of-service, shrink-wrap, click-wrap, browse-wrap, confidentiality, non-disclosure, non-compete, acceptable use policies, or other forms of agreement (oral or otherwise) concerning the Funding or the activities to be undertaken and the deliverables to be delivered by TechCo under this Contract will be valid and enforceable against UNICEF, nor in any way will constitute an agreement by UNICEF, unless any such promises, understandings, obligations, undertakings, licenses or other forms are the subject of a valid

amendment concluded in accordance with Article 11.9 of the UNICEF General Terms and Conditions of Contract (Services) set out in Annex A.

2. Definitions

2.1 In addition to the definitions included in Article 1.1 of the UNICEF General Terms and Conditions of Contract (Services) attached as Annex A, in this Contract, the following terms have the following meaning:

(a) TechCo's "Key Personnel" are Personnel identified in the Project Design Statement and Budget, attached as Annex B, as key individuals.

(b) "Open License" means the following terms or their equivalent as specified in the Project Design Statement and Budget: (i) for software, a BSD license, (ii) for hardware, a CERN license and (iii) for design or content, a CC-BY license.

(c) "Project Data" means any and all information or data in digital form or processed or held in digital form that is generated through the Deliverables or Project activities or otherwise relates to the Project or that is collected by TechCo in the performance of this Contract, including but not limited to, user data, numbers of additions and deletions, commit counts and commit activities.

(d) "Project IP" means all intellectual property and other proprietary rights, whether registered or unregistered, in the Deliverables developed as part of the Project with Funding provided under this Contract, including all copyright in designs, code, content, related documentation or other materials.

3. Effective Date; Term

3.1 This Contract will be a binding contract between UNICEF and TechCo when UNICEF receives a copy of this Contract counter-signed by TechCo. The effective date of this Contract will be the date UNICEF receives the counter-signed copy.

3.2 The Contract will continue from the Effective Date until the date (the "Delivery Date") stated on the first page of this Contract, unless earlier terminated in accordance with the terms of this Contract. The period from the Effective Date to the Delivery Date is referred to as the "Contract Period". Any extension of the Contract Period must be agreed to in advance in writing by both Parties and will become effective only upon conclusion of a valid amendment made in accordance with Article 11.9 of the UNICEF General Terms and Conditions of Contract (Services) set out in Annex A.

4. UNICEF's Responsibilities

4.1 UNICEF will make available to TechCo Funding in an amount not to exceed the total amount as set out on the first page of this Contract. No other funding will be made available to TechCo, unless agreed to by UNICEF following satisfactory application by TechCo and appropriate

written amendment to this Contract. TechCo will be responsible for, and UNICEF will not be liable for, all costs, expenses, charges or fees that TechCo may incur in connection with the performance of its obligations under this Contract.

4.2 The Funding will be made available to TechCo in accordance with the disbursement schedule set out on the first page of this Contract. The disbursement schedule is based on the cash flow projections contained in the Project Design Statement and Budget.

(a) The first tranche will be disbursed by UNICEF within thirty (30) days after TechCo has completed the supplier registration procedures required by UNICEF.

(b) The second and any agreed subsequent tranches will be disbursed by UNICEF on the date specified in the disbursement schedule on condition that TechCo has, at least thirty days prior to such date provided to UNICEF a written request for disbursement together with a progress report that contains: (i) a summary of the expenditure of the prior tranche or tranches of Funding; a statement of the cash balance, if any, remaining as at the end of the month immediately preceding the submission of the request; and a description of any material variances from the Project Design Statement and Budget; (ii) confirmation by TechCo that all Funding has been used in accordance with the Project Design Statement and Budget; (iii) evidence of the fulfillment of the requirement in Article 5.6; and (iv) confirmation by TechCo that it is on course to complete the Deliverable in accordance with the timeline and other requirements of the Project Design Statement and Budget and highlighting any expected challenges and mitigating actions.

4.3 UNICEF will transfer each tranche of the Funding by wire transfer, in United States dollars, to the TechCo bank account listed on the first page of this Contract.

4.4 Payment will not relieve TechCo of its obligations under this Contract and will not be deemed to be acceptance by UNICEF of, or waiver of any of UNICEF's rights with regard to, TechCo's performance. TechCo will not be entitled to interest on any late payment of any sums payable under this Contract.

4.5 UNICEF will be entitled to withhold payment of any tranche or reduce the amount of the tranche if UNICEF determines, in its sole discretion, that there is a discrepancy in the content or form of the request for disbursement or required supporting documents or that, in the case of a request for disbursement of the second or subsequent tranches, any of the following apply:

(a) Funding provided has not been used in accordance with the Project Design and Budget or there has been any other material breach of this Contract;

(b) there has been insufficient progress made by TechCo by reference to the milestones and deliverables in the Project Design Statement and Budget;

(c) the requirement in Article 5.6 has not been fulfilled to UNICEF's satisfaction.

If UNICEF makes a determination under this Article 4.5, it will promptly notify TechCo of its determination and UNICEF and TechCo will consult to resolve the matter.

4.6 TechCo authorizes UNICEF to deduct from TechCo's invoices any amount representing direct taxes (except charges for utilities services) and customs restrictions, duties and charges of a similar nature in respect of articles imported or exported for UNICEF's official use in accordance with the exemption from tax in Article II, Section 7 of the Convention of the Privileges and Immunities of the United Nations, 1946. In the event any governmental authority refuses to recognize this exemption from taxes, restrictions, duties or charges, TechCo will immediately consult with UNICEF to determine a mutually acceptable procedure. TechCo will provide full cooperation to UNICEF, if requested, with regard to securing UNICEF's exemption from, or refund of amounts paid as, value-added taxes or taxes of a similar nature.

4.7 TechCo acknowledges that, other than as expressly set out in this Contract, UNICEF will have no obligation to provide any assistance to TechCo and UNICEF makes no representations as to the availability of any facilities, equipment, materials, systems or licenses which may be helpful or useful for the fulfilment by TechCo of its obligations under the Contract or for the successful design, realisation, or marketing of the technology described in the Project Design Statement and Budget. If UNICEF, at its sole discretion, agrees to provide any technical or other assistance to TechCo, TechCo acknowledges that such assistance will not give rise to liability of any kind on the part of UNICEF.

5. TechCo Responsibilities

TechCo Responsibilities

5.1 TechCo will implement the Project in accordance with the Project Design Statement and Budget and this Contract, and deliver the Deliverables on time in accordance with the schedule for completion of Project milestones.

5.2 TechCo will use the Funding exclusively for the purposes of implementing the Project in accordance with this Contract (including the Project Design Statement and Budget). If TechCo wishes to make any material changes to the Project Design Statement and Budget, the specifications of the Deliverables or time for provision of the Deliverables as set out in the Project Design Statement and Budget, TechCo will notify UNICEF and will secure UNICEF's prior written approval before making any such material change, which UNICEF may withhold in its discretion or provide on such terms and conditions as UNICEF may determine. TechCo understands and acknowledges that UNICEF will not be responsible for any increased costs resulting from, and will not provide any additional funding for, such approved material changes.

Reporting; Post-payment Audit

5.3 Within two weeks after receipt of the first disbursement of funding under this Contract, TechCo will put into place and maintain throughout the Contract Period a mechanism, acceptable to UNICEF, for UNICEF to access real-time updates on TechCo's progress in implementing this Contract.

5.4 In addition to the financial reports referred to in Article 4.2(b) above, TechCo will, within thirty (30) days after the expiry of the Contract Period, deliver to UNICEF a final financial report summarizing the use and expenditure of Funding made available to it under this Contract during the Contract Period. UNICEF may, either before or after such financial report is due or delivered, request that such financial report be audited by an independent audit firm, in which case TechCo will do so. If there are any funds remaining after settlement of all commitments made in accordance with the Project Design Statement and Budget prior to the expiry of the Contract Period, TechCo shall promptly return such remaining funds to UNICEF or as instructed by UNICEF.

5.5 A post-payment audit may be undertaken by UNICEF's external and internal auditors or by other authorised agents of UNICEF, at any time during the term of the Contract and for three (3) years after the Contract terminates. UNICEF will be entitled to a refund from TechCo of any amounts that such audit or audits determine were not in accordance with the Contract, regardless of the reasons for such payments (including but not limited to the actions or inactions of UNICEF staff and other personnel), or that were not used by TechCo in accordance with the Contract.

TechCo Responsibilities with Regard to Intellectual Property

5.6 By no later than half way through the Contract Period, make publicly accessible in perpetuity all Project IP on a GitHub repository on appropriate Open License terms acceptable to UNICEF with attribution reflecting TechCo as the primary licensor and, during the Contract Period and in perpetuity thereafter, continue to make publicly accessible all improvements, patches and updates of the Project IP.

5.7 During the period from making the Project IP accessible on the GitHub repository to the expiry of the Contract Period, and for a twelve (12) month period after the expiry of the Contract Period, make available to UNICEF such Project Data as UNICEF may reasonably request on a real-time basis (with a 99% uptime rate).

5.8 During the Contract Period and for a twelve (12) month period after the expiry of the Contract Period, at UNICEF's request, provide its reasonable cooperation to UNICEF in relation to, among other things, requests for clarification in relation to the integration of the Deliverables into UNICEF programmes, such cooperation to include (but not be limited to) making TechCo's Personnel and any relevant data and documentation available for such purposes.

Guiding Principles and Testing Standards

5.8 The Parties agree that the Principles for Digital Development set out on the UNICEF Innovation Fund website (available at <http://www.unicefstories.org/principles/>) will guide TechCo's activities in connection with implementation of the Project and development of the Deliverables. Without limiting the preceding sentence, TechCo will ensure that the Deliverables are inter-operable with other open source platforms and that the Deliverables will not be reliant on content, software or hardware that are only available under licenses that are not open source or that are only available for a charge or fee.

5.9 TechCo will ensure that all Deliverables are tested in accordance with the testing protocol and standards described in the Project Design Statement and Budget – and ensuring that all code has at least 80% unit test coverage in its final form. TechCo will make all test results publicly available at the same time as making Deliverables available on the relevant GitHub repository. At UNICEF's request, TechCo will provide UNICEF with evidence that each Deliverable meets the relevant testing standards.

5.10 Acknowledging that the Deliverables are intended to be useable by children, adolescents and/or young adults, TechCo will apply appropriate standards of care in its testing and outreach to target groups in the development of its Deliverables and will comply with international best practice standards and any guidance provided by UNICEF regarding engaging children and young people in the development of digital products and services.

TechCo's Key Personnel

5.11 TechCo acknowledges and understands that a condition of the award of this Contract to TechCo is the commitment in time and resources of TechCo's Key Personnel to the implementation of the Project. In the event that one or more of TechCo's Key Personnel leaves TechCo or otherwise becomes unavailable to support the Project at any time during the Contract Period, for any reason, TechCo will promptly notify UNICEF. In notifying UNICEF, TechCo will provide an explanation of the circumstances of the Key Personnel's absence and a proposal for mitigating the impact of such absence in sufficient detail to permit evaluation of the impact on the Project and the engagement with TechCo. If UNICEF determines, in its sole discretion, that the objectives of the Project can no longer be fulfilled or that the purposes for which the Funding is being made available to TechCo can no longer be achieved to UNICEF's satisfaction, UNICEF may terminate this Contract upon thirty (30) days' prior written notice to TechCo in accordance with Article 6 of the UNICEF General Terms and Conditions of Contract (Services) attached as Annex A.

6. Consultations; Focal Points

6.1 The Parties will have regular and frequent consultations to assess progress in implementation of the Project and development of the Deliverables. Each Party will each nominate a representative to be responsible for the day-to-day coordination and management of the Contract and will inform the other Party by exchange of emails of the contact details of such representative and any change or replacement of such representative or of his/her contact details. TechCo's representative will keep UNICEF informed on the progress of TechCo's work in relation to the Project.

7. Representations and Warranties; Indemnification; Insurance and Liability

7.1 TechCo makes the following representations and warranties to UNICEF:

(a) TechCo has the full authority and power to enter into the Contract and to perform its obligations under the Contract and the Contract is a legal, valid and binding obligation, enforceable against it in accordance with its terms.

(b) All of the information it has provided to UNICEF concerning TechCo, TechCo's Key Personnel, the Project activities and the Deliverables is true, correct, accurate and not misleading.

(c) TechCo is financially solvent and is able to undertake the Project activities and provide the Deliverables in accordance with the terms and conditions of the Contract.

(d) TechCo has, and will maintain throughout the Contract Period, all rights, licenses, authority and resources necessary, as applicable, to undertake the Project activities and provide the Deliverables to UNICEF's satisfaction and to perform its obligations under the Contract.

(e) Except as otherwise expressly stated in the Contract, the Deliverables (i) will be derived from intellectual property available under Open License terms or (ii) will be original to TechCo and, in such case, will not infringe any copyright, trademark, patent or other proprietary right of any third party.

(f) Except as otherwise expressly stated in the Contract, TechCo has not and will not enter into any agreement or arrangement that restrains or restricts any person's rights to use any Deliverable or other work resulting from the Project activities.

(g) Notwithstanding any inconsistent terms of any Open License applicable to the Deliverables, the Deliverables provided under the Contract will not contain any Disabling Code, and UNICEF will not otherwise receive from TechCo any Disabling Code through the use of the Deliverables. Without prejudice to UNICEF's other rights and remedies, if a Disabling Code is identified, TechCo, at its sole cost and expense, will take all steps necessary to furnish to UNICEF a corrected version of the relevant Deliverables without the presence of Disabling Codes.

7.2 TechCo further represents and warrants that it and its Personnel and sub-contractors will perform the Contract (a) in a professional and workmanlike manner; (b) with reasonable care and skill and in accordance with the highest professional standards accorded to professionals providing the same or substantially similar services in a same industry; and (c) in accordance with all laws, ordinances, rules, and regulations bearing upon the performance of its obligations under the Contract.

Indemnification

7.3 TechCo will indemnify, hold harmless and defend, at its own expense, UNICEF, its officials, agents and employees, from and against all suits, claims, demands, losses and liability ("Claims") of any nature or kind, including their costs and expenses, brought by a third party and arising out of the alleged infringement of a copyright or other intellectual property rights or licenses, patent, design, trade-name or trade-mark in connection with the use by UNICEF of the Services or Deliverables. UNICEF will report any such Claims to TechCo within a reasonable period of time after having received actual notice. TechCo will have sole control of the defence, settlement and compromise of any such Claims, except with respect to the assertion or defence of the privileges and immunities of UNICEF, which as between the Contractor and UNICEF only

UNICEF itself will assert and maintain.

Insurance

7.4 During the Contract Period, TechCo will have and maintain in effect with reputable insurers insurance sufficient to cover all of TechCo's liabilities under this Contract.

8. Intellectual Property and Other Proprietary Rights

8.1 TechCo will be entitled to all Project IP; provided that TechCo will make available all Project IP on Open License terms in accordance with Article 5.6 of this Contract.

8.2 No Party will be entitled to any intellectual property or other proprietary rights of the other Party that pre-existed the effective date of this Contract, or that such other Party may develop or acquire, or may have developed or acquired, independently of this Contract.

9. Additional Termination Right; Consequences of Termination

9.1 In addition to the termination rights under Article 6 of the UNICEF General Terms and Conditions (Services) attached as Annex A, UNICEF can terminate the Contract on fourteen (14) day's written notice to TechCo if it determines, in its sole discretion, that implementation of the Project has not commenced within a reasonable time after the Effective Date of the Contract.

9.2 If the Contract is terminated by either party for any reason, no payment will be due from UNICEF to TechCo except for Project activities and Deliverables provided to UNICEF's satisfaction in accordance with the Contract, but only if such Project activities and Deliverables were required or requested before TechCo's receipt of the notice of termination or, in the case of termination by TechCo, the effective date of such termination. TechCo will have no claim for any further payment beyond payments in accordance with this Article 9.2, but will remain liable to UNICEF for all loss or damages which may be suffered by UNICEF by reason of TechCo's default.

9.3 Without limiting any other rights or obligations of the parties under the Contract, if Funding provided under this Contract is not used in accordance with the Contract and the Project Design Statement and Budget, including, but not limited to, use in violation of Articles 5.1 and 5.2 or breaches any of the UNICEF ethical standards set out in Article 7 of the UNICEF General Terms and Conditions of Contract (Services) attached as Annex A, TechCo will, upon UNICEF's written demand, refund all payments made by UNICEF under this Contract.

10. Notices

10.1 Any notice, request or consent required or permitted to be given or made pursuant to the Contract will be in writing, and addressed to the persons listed below. Each Party will notify the other in writing of any change in such Party's contact and address for notices.

If to UNICEF:

United Nations Children's Fund

Three United Nations Plaza

New York, NY 10017 USA

ATT: Director, Innovations Office

Fax: + [INSERT DETAILS]

E-mail: [INSERT DETAILS]

Copy to: [Representative in Country]

If to TechCo:

[COMPLETE COMPANY NAME]

[ADDRESS]

Attention: [CONTACT NAME]

Fax: [INSERT DETAILS]

E-mail: [INSERT DETAILS]

11. Communication

11.1 TechCo will provide its full cooperation with UNICEF's reasonable request for assistance with UNICEF's communication campaigns concerning the Innovation Fund.

11.2 TechCo may refer publicly to the support provided by the UNICEF Innovation Fund by using the following statement: "[TechCo] gratefully acknowledges financial support provided for this Project by the UNICEF Innovation Fund."

11.3 Except as permitted under Article 11.2 of this Contract, TechCo will not, without the UNICEF's prior written approval: (a) advertise or otherwise make public for purposes of commercial advantage or goodwill that it has a contractual relationship with UNICEF (or the United Nations); or (b) issue any press release or make any public announcement about the award of this Contract to TechCo or the support of UNICEF's Innovation Fund, or make any announcement in connection with the Project mentioning the name of UNICEF or containing any emblem or logo of UNICEF.

11.4 Except as permitted under Article 11.2 of this Contract or as regards references to the name of UNICEF for the purposes of annual reports or communication between the parties and between TechCo and its Personnel and sub-contractors, TechCo will not, in any manner whatsoever use the name, emblem or official seal of UNICEF or the United Nations, or any abbreviation of the name of the United Nations, in connection with its business or otherwise without the prior written permission of UNICEF.

12. Survival

12.1 The provisions of Articles 5.3, 5.4, 5.5, 5.6, 5.7, 7.3, 8, 9.2, 9.2 and 11 of this Contract will survive the completion of the Project activities and the provision of the Deliverables and the expiry or earlier termination of this Contract.

13. Transparency

13.1 TechCo acknowledges and agrees that, in the interests of transparency, UNICEF may make a copy of this Contract publicly available.

Annex A

UNICEF General Terms and Conditions of Contract (Services)

Annex B
Project Design Statement and Budget